

BREYER, J., dissenting

See *Turkmen v. Hasty*, 789 F. 3d 218, 262–264 (CA2 2015). I agree with the Court of Appeals that the defendants are not entitled to qualified immunity on this claim. See *ibid.*)

2

Even were I wrong and were the context here “fundamentally different,” *Malesko*, 534 U. S., at 70, the plaintiffs’ claims would nonetheless survive step two and step three of the Court’s framework for determining whether *Bivens* applies, see *supra*, at 168. Step two consists of asking whether “any alternative, existing process for protecting the interest amounts to a convincing reason for the Judicial Branch to refrain from providing a new and freestanding remedy in damages.” *Wilkie*, 551 U. S., at 550. I can find no such “alternative, existing process” here.

The Court does not claim that the PLRA provides the plaintiffs with a remedy. *Ante*, at 148–149. Rather, it says that the plaintiffs *may* have “had available to them” relief in the form of a prospective injunction or an application for a writ of habeas corpus. *Ante*, at 145. Neither a prospective injunction nor a writ of habeas corpus, however, will normally provide plaintiffs with redress for harms they have *already* suffered. And here the plaintiffs make a strong claim that neither was available to them—at least not for a considerable time. Some of the plaintiffs allege that for two or three months they were subject to a “communications blackout”; that the prison “staff did not permit them visitors, legal or social telephone calls, or mail”; that their families and attorneys did not know where they were being held; that they could not receive visits from their attorneys; that subsequently their lawyers could call them only once a week; and that some or all of the defendants “interfered with the detainees’ effective access to legal counsel.” Office of Inspector General (OIG) Report, App. 223, 293, 251, 391; see App. to Pet. for Cert. in No. 15–1359, at 253a, n. 1 (incorporating the OIG report into the complaint). These claims make it